

Court No. - 39

Case :- WRIT - C No. - 14871 of 2021

Petitioner :- M/S Galaxy Papers Private Limited And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And 2 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Sadhna Rani (Thakur),J.

Heard Sri Mayank Kumar Agrawal, learned counsel for the petitioners and Sri Narendra Kumar Tiwari, learned counsel for the respondent- Nigam.

The challenge is to the demand notice dated 21.06.2021 issued by the Executive Engineer, Vidyut Vitran Nigam Ltd., Muzaffar Nagar demanding charges for usage of electricity on the basis of difference of reading in the main meter and checking meter.

Learned counsel for the petitioners seeks to challenge the said notice on the ground that the main meter installed at the premises of the petitioners was not found defective on 09.02.2021 and there was no necessity to install a check meter. It is contended that no check meter could have been installed as per Clause 5.6(c)(i) of the U.P. Electricity Supply Code, 2005 unless and until the main meter had been tested and found defective.

The issues being raised in the present petition are factual in nature. It would, therefore, be appropriate that the petitioners may approach the respondent no.2 i.e. the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd., Muzaffar Nagar by raising objections in detail to the demand notice dated 21.06.2021 within a period of three weeks along with the copy of this order.

On the said objection being made, the Executive Engineer shall be under obligation to take an expeditious decision by passing a reasoned and speaking order, in accordance with law, preferably within a period of four weeks, thereafter.

For a period of seven weeks from today or till the fresh decision is taken by the respondent no.2, no coercive measure shall be taken against the petitioner pursuant to the notice dated 21.06.2021.

However, it is made clear that in case the petitioner does not file any objection within the time given above, it would be open for the respondent to proceed in accordance with law.

In view of the above, the writ petition is ***disposed of.***

Order Date :- 7.7.2021

P Kesari